

INTRODUCTION TO THE **CONSTITUTION OF** **PAKISTAN**

1. Definition and importance of a constitution.
2. Ideological factors that shaped the Constitutions of Pakistan
(Objectives Resolution 1949)

1. Definition and Importance of a Constitution.

“A constitution is the supreme set of fundamental laws and rules that establishes how a country is governed and defines the basic rights of its citizens.”

What is a Constitution?

- ▶ **Supreme Law:** It is the highest law of the land; no ordinary law or government action can go against it.
- ▶ **Blueprint for Government:** It sets up the structure of the state and creates the main branches of government—the legislature (makes laws), the executive (enforces laws), and the judiciary (interprets laws).
- ▶ **Written or Unwritten:** Most countries write their constitution down in a single document, while a few (like the United Kingdom) rely on a collection of written laws, traditions, and court decisions.

Why is it Important?

- ▶ **Limits Government Power:** It stops rulers or government officials from abusing their authority by setting clear legal boundaries.
- ▶ **Protects Citizen Rights:** It guarantees fundamental freedoms, such as freedom of speech, equality, and justice, ensuring they cannot be easily taken away.
- ▶ **Ensures the Rule of Law:** It guarantees that everyone—including the highest leaders—is subject to the same laws.
- ▶ **Provides Stability:** It outlines clear rules for peaceful transitions of power, such as holding regular and fair elections.

2. Ideological factors that shaped the Constitutions of Pakistan

- ▶ The Constitutions of Pakistan were primarily shaped by Islamic principles, the Two-Nation Theory, and the democratic and social goals of the Pakistan Movement.

Key Ideological Factors:

▶ Two-Nation Theory:

The core belief that Muslims and Hindus were distinct nations with irreconcilable religious, cultural, and social differences. This theory necessitated a separate state and ensured that the nation's supreme laws reflected a distinct Muslim identity rather than a secular or composite nationalism.

▶ Sovereignty of Allah:

This principle declares that ultimate power belongs to God Almighty alone. The elected government uses its authority as a sacred trust within the limits set by the Quran and Sunnah.

► **Islam as the State Religion and Identity:**

The continuous ideological drive to formally define the country's identity. Starting with the 1956 Constitution, Pakistan was officially designated as an "Islamic Republic", a provision retained and reinforced in the 1973 Constitution. It established that no law repugnant to the injunctions of Islam—as laid down in the Quran and Sunnah—shall be enacted.

► **Democratic and Welfare Aspirations:**

Influenced by Islamic social justice, the ideology integrated principles of equality, fraternity, tolerance, and social economic justice. The state aimed to enable Muslims to order their lives individually and collectively in accordance with Islamic teachings, while simultaneously adopting a parliamentary democratic framework to govern state organs.

► **Islamic Democracy:**

This concept merges popular rule with Islamic moral values. Elected representatives make laws and run the country based on justice, equality, and brotherhood.

► **Rights of Minorities:**

The ideology ensures that non-Muslim citizens enjoy full social and legal protection. They have the freedom to practice their own faith, worship, and culture. Grounded in the inclusive vision articulated by Quaid-e-Azam Muhammad Ali Jinnah, the ideological framework dictated that religious and cultural minorities must be safeguarded. The constitutions consistently incorporated fundamental rights ensuring that minorities could freely profess and practice their religions and develop their cultures.

The Objectives Resolution (1949):-

Introduction:-

- The Objectives Resolution was a foundational document adopted by the Constituent Assembly of Pakistan on March 12, 1949, setting the ideological and guiding framework for the country's future constitutions.
- Prime Minister Liaquat Ali Khan introduced the resolution on March 7, 1949, blending Islamic principles with modern democratic governance.
- It declared that absolute sovereignty over the entire universe belongs to Allah Almighty, and the state would exercise delegated authority within the limits prescribed by Him.
- It later became the mandatory preamble (and now a substantive part via Article 2A) of subsequent constitutions.

Core Principles

- ▶ **Sovereignty of Allah:** Declared that authority over the entire universe belongs to Allah alone, delegated to the State of Pakistan through its people as a sacred trust.
- ▶ **Democratic Rule:** Stipulated that the state would exercise power and authority through the chosen representatives of the people.
- ▶ **Islamic Way of Life:** Enabled Muslims to order their lives in individual and collective spheres in accordance with the teachings of the Holy Quran and Sunnah.
- ▶ **Rights of Minorities:** Guaranteed freedom for religious minorities to freely profess and practice their religions and develop their cultures.
- ▶ **Fundamental Rights:** Ensured equality of status, opportunity, and before the law, along with social, economic, and political justice and freedom of thought, expression, and belief for all citizens.

Constitution of Pakistan 1973.

- ▶ The Constitution of 1973 is the supreme and current law of Pakistan, passed on April 10, 1973, and promulgated on August 14, 1973. It was framed by the elected representatives of the National Assembly of Pakistan during the government of Zulfikar Ali Bhutto.
- ▶ *History and Adoption*
 1. Drafting: Created after the separation of East Pakistan to unite the remaining provinces under a democratic framework.
 2. Approval: Passed unanimously by the assembly on April 10, 1973.
 3. Authentication: Signed by the President of the Assembly on April 12, 1973.
 4. Promulgation: Officially put into effect on August 14, 1973.

Key Features of the 1973 Constitution:-

- ▶ **Islamic Provisions:** It declares Pakistan an Islamic Republic with Islam as the state religion. It mandates that the President and Prime Minister must be Muslim and that all existing laws must conform to the Quran and Sunnah.
- ▶ **Federal System:** Divides governing powers between the central government and the provinces.
- ▶ **Fundamental Rights:** Guarantees basic human, social, and economic freedoms for all citizens.
- ▶ **National Language:** It names Urdu as the official national language of Pakistan.
- ▶ **Independent Judiciary:** Protects the court system from government control, with the Supreme Court at the top.

- ▶ **Bicameral Legislature:-** The federal parliament (Majlis-e-Shoora) has two houses: the National Assembly (lower house) representing population, and the Senate (upper house) providing equal provincial representation.
- ▶ **Parliamentary System:-** It establishes a parliamentary form of government where the Prime Minister acts as the functional head of government with executive authority, while the President serves as a symbolic, ceremonial head of state.
- ▶ **Written and Rigid Document:-** It is a fully written text consisting of 280 articles, 12 parts, and 7 schedules. It is rigid because changing it requires a two-thirds majority vote in both houses of parliament.